

Shaphalata Jain v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 6 May 2011 · WRIT - C No. 26445 of 2011 · **Writ dismissed at admission; relegated to clause 7.10 forum.**

HEADNOTE

Where the authority has already considered the consumer's grievance and clause 7.10 of the Uttar Pradesh Electricity Supply Code, 2005, provides the Consumer Grievance Redressal Forum and Ombudsman as an alternative forum, the High Court will not interfere in writ. Dismissal at admission does not affect the right to approach the authority for early disposal; that authority must consider the civil court decree and the petitioner's possession.

FACTUAL SUMMARY

Shaphalata Jain invoked the Allahabad High Court's writ jurisdiction against the State of Uttar Pradesh and others over an electricity grievance. Counsel appeared for the petitioner, the State, and the distribution licensee. The Court recorded that the authority concerned had already considered her grievance. The record included a civil court decree and the question of the petitioner's possession. The writ was heard at the admission stage on 6 May 2011 by a Division Bench of Amitava Lala and Ashok Srivastava, JJ.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

alternative forum — CGRF and Ombudsman

HOLDING

The Consumer Grievance Redressal Forum and Ombudsman under clause 7.10 of the Uttar Pradesh Electricity Supply Code, 2005, are an alternative forum for adjudication of the consumer's grievance; the High Court will not interfere in writ where that route is available, even if the authority has already considered the grievance. Dismissal of the writ does not affect the petitioner's right to approach the authority for early disposal, and that authority must carefully consider the civil court decree and the petitioner's possession. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE ELECTRICITY GRIEVANCE, INCLUDING THE EFFECT OF THE CIVIL COURT DECREE AND THE PETITIONER'S POSSESSION

Writ dismissed at admission for the clause 7.10 alternative forum; those facts were left to the authority concerned. ¶ 1